



LAW IS MASTER OF THE RULERS

PLATO'S *LAWS* (348 BCE)

IN CONTEXT

FOCUS

The sovereignty of law

BEFORE

399 BCE The Greek philosopher Socrates is sentenced to death in Athens, leaving his pupil Plato with a hatred of democracy as mob rule.

c. 367–361 BCE Plato serves as tutor to Dionysius II, the new tyrant of Syracuse, but his attempt to make Dionysius a philosopher-king is a failure.

AFTER

c. 330 BCE In *Politics*, Plato's pupil Aristotle argues that a state should combine democracy and oligarchy (government by the few).

c. 130 BCE The Greek historian Polybius praises the Roman Republic as a successful mixed government system.

1748 In *The Spirit of Laws*, Montesquieu proposes a mixed government system.

Written by Athenian philosopher Plato in the 350s BCE, *Laws* is his last and longest book. His more famous *Republic* had looked at an ideal state ruled by philosopher-kings with no need for laws. In contrast, *Laws* is concerned with the “second-best state,” where law is supreme.

The book, set in Crete, is a dialogue between an unnamed Athenian; a Spartan named Megillus; and a Cretan, Clinias. The Cretan is on his way to establish a new city, Magnetes (Magnesia). The three discuss its constitution, and the Athenian suggests a code of laws covering every aspect of life.

Plato's theorized city-state combines an authoritarian system with democratic elements. Its laws are first drawn up by a dictator and a wise legislator, who then surrender their powers to elected officials. Every law has a prelude to persuade the people that it is in their interests to obey it. To stop anyone from becoming more powerful than the law, there is a system of checks and balances.



A fresco in the Vatican Museum, Vatican City, depicts Plato (left) with his student Aristotle, who was influenced by his teacher's views on law and government.

The city's officials are subject to the authority of examiners, who check their qualifications and can hold them to account. Plato's doctrine of the sovereignty of law and a mixed government system had a lasting legacy, influencing philosophers from Aristotle to the 18th-century French judge Montesquieu. ■

See also: Aristotle and natural law 32–33 ■ The Glorious Revolution and the English Bill of Rights 102–103 ■ The US Supreme Court and judicial review 124–129